

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Michael Miskovski	Team: Squad #14	CCRB Case #: 202401226	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Saturday, 02/03/2024 7:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/3/2025	Precinct: 30		
Date/Time CV Reported Mon, 02/05/2024 4:44 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 02/05/2024 4:44 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Anthony Sory	24826	962817	BX WARRANT SQD
2. PO Key Matiascastillo	21571	968620	WARRSEC
3. PO Namel Holguin	03109	960674	WARRSEC
4. SGT Brendan Murphy	03035	955237	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Malvin Rodriguez	26773	971204	030 PCT
2. PO Kyle Aiello	10816	968922	030 PCT
3. LT Roberto Suarez	00000	943850	030 PCT
4. PO Robert Lazala	22505	969889	030 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Key Matiascastillo	Off. Language: Police Officer Key Matiascastillo was offensive to § 87(2)(b)	A . Substantiated
B . PO Key Matiascastillo	Discourtesy: Police Officer Key Matiascastillo was discourteous to § 87(2)(b)	B . Substantiated
C . PO Key Matiascastillo	Discourtesy: Police Officer Key Matiascastillo was discourteous to § 87(2)(b)	C . Substantiated
D . PO Anthony Sory	Abuse: Police Officer Anthony Sory failed to activate his body-worn camera.	D . Substantiated
E . PO Namel Holguin	Abuse: Police Officer Namel Holguin failed to activate his body-worn camera.	E . Substantiated
F . PO Key Matiascastillo	Abuse: Police Officer Key Matiascastillo failed to activate his body-worn camera.	F . Substantiated
G . PO Namel Holguin	Abuse: Police Officer Namel Holguin threatened to damage § 87(2)(b) property.	G . Substantiated
H . SGT Brendan Murphy	Abuse: Sergeant Brendan Murphy entered § 87(2)(b) in Manhattan.	H . Substantiated
I . SGT Brendan Murphy	Abuse: Sergeant Brendan Murphy searched § 87(2)(b) in Manhattan.	I . Substantiated
J . PO Namel Holguin	Force: Police Officer Namel Holguin used physical force against § 87(2)(b)	J . Within NYPD Guidelines
K . PO Namel Holguin	Abuse: Police Officer Namel Holguin threatened to arrest § 87(2)(b)	K . Substantiated

Officer(s)	Allegation	Inv. Div. Recommendation
§ 87(2)(g), § 87(4-b)		

Case Summary

On February 5, 2024, § 87(2)(b) filed this complaint with the CCRB via the call processing system.

On February 3, 2024, at approximately 7:00 a.m., Police Officers Anthony Sory, Key Matiascastillo, and Namel Holguin, all of the Bronx Warrant Squad, arrived at § 87(2)(b) apartment at § 87(2)(b) in Manhattan, in search of § 87(2)(b) grandson, § 87(2)(b) who escaped from police custody at a hospital earlier that morning. PO Matiascastillo wore several patches on his vest, including the Punisher symbol (**Allegation A-B, Offensive Language, Discourtesy, substantiated**), a wolf patch, a Saint Michael patch, a Batman thin blue line symbol patch, a patch of a Psalm, and a patch that read, “zero fucks given” (**Allegation C: Discourtesy, substantiated**). PO Matias, PO Holguin, and PO Sory spoke with § 87(2)(b) through the door of her apartment regarding their desire to enter the residence, though none of the officers activated their body worn cameras (**Allegations D-F: Abuse of Authority, substantiated**). PO Holguin threatened to break down the door if § 87(2)(b) did not open it (**Allegation G: Abuse of Authority, substantiated**). PO Sory called Sgt. Brendan Murphy, also of Bronx Warrant Squad, and Sgt. Murphy ordered the officers to gain entry and search the location (**Allegations H-I: Abuse of Authority, substantiated**). PO Matias, PO Holguin, and PO Sory then went to retrieve their entry tools, and encountered PO Malvin Rodriguez and PO Kyle Aiello, both of the 30th Precinct, who then accompanied them to § 87(2)(b) apartment. § 87(2)(b) eventually opened the door for the officers and PO Holguin used a shield to push § 87(2)(b) against the wall (**Allegation J: Force, Within NYPD Guidelines**). PO Holguin then threatened § 87(2)(b) with arrest (**Allegation K: Abuse of Authority, substantiated**).

The officer ultimately determined that § 87(2)(b) was not inside § 87(2)(b) apartment and no arrests or summonses resulted from this incident.

§ 87(2)(g), § 87(4-b)

The investigation received BWC footage from PO Aiello, PO Matiascastillo, PO Rodriguez, PO Sory, PO Holguin, and PO Robert Lazala, and Lieutenant Roberto Suarez, both of the 30th Precinct, who arrived on scene at the end of the incident (**BR 04**). The relevant aspects of footage are discussed in further detail below.

Findings and Recommendations

Allegation (A) Offensive Language: Police Officer Key Matiascastillo was offensive to § 87(2)(b)

Allegation (B) Discourtesy: Police Officer Key Matiascastillo was discourteous to § 87(2)(b)

Allegation (C) Discourtesy: Police Officer Key Matiascastillo was discourteous to § 87(2)(b)

In the BWC footage from PO Rodriguez (**BR 05**) at 00:04, PO Matiascastillo can be seen with a Punisher patch, a wolf patch, and a Saint Michael patch in the front of his vest. In PO Sory’s BWC footage (**BR 06**), at 01:02, the back of PO Matiascastillo’s vest can be seen with a “zero fucks given” patch, a batman thin blue line patch, a sheepdog patch, and a Psalm patch. Snapshots of PO Matiascastillo’s vest from each angle in the BWC are contained in **BR 07**.

The CCRB is only investigating PO Matiascastillo’s Punisher patch and “zero fucks given” patch due to their offensive and discourteous nature.

PO Matiascastillo stated in his CCRB interview (**BR 08**) that the patches were not appropriate to wear, though he did not know if they were against NYPD regulations. PO Matiascastillo had since removed the patches from his uniform because a supervisor told him to remove them.

The Punisher skull symbol was originally loosely based on the German “Totenkopf” a.k.a “Death’s Head” symbol. The Totenkopf depicts a skull and crossbones and was adopted by Adolf Hitler’s Nazi-era Schutzstaffel (SS) as their symbol during World War II. The use of the Punisher symbol outside of Marvel Comics, has been associated with white supremacy rallies. For example, at a white supremacist rally in Charlottesville Virginia held on August 11, 2017, many of the attendees were spotted with the Punisher logo painted on their shields. The police have also chosen to associate themselves with the Punisher skull (BR 25).

NYPD Patrol Guide Procedure 200-02 states that the mission of the NYPD is to enhance the quality of life in New York City by working in partnership with the community to enforce the law, preserve peace, protect the people, reduce fear and maintain order. As part of their core values, the NYPD maintain a higher standard of integrity than is generally expected of others. Additionally, it is their mission to value human life, respect the dignity of each individual and render their services with courtesy and civility and treat every citizen with courtesy, professionalism, and respect (BR 09).

Administrative Guide 304-06 prohibits “using discourteous or disrespectful remarks regarding another person’s age, ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability” (BR 26).

NYPD Administrative Guide 305-01 (BR 10) instructs officers that they cannot “modify prescribed uniforms in any manner except as specifically authorized by higher authority.” In DCT Case 2021-23203 (BR 11), the court found that officers are prohibited from wearing unauthorized patches on their uniforms.

By PO Matiascastillo’s own statement, the patches on his vest, which included the Punisher symbol, were not appropriate to wear. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that Allegations A-B be closed as *substantiated*.

§ 87(2)(g) It is therefore recommended that Allegation C be closed as *substantiated*

Allegation (D) Abuse of Authority: Police Officer Anthony Sory failed to activate his body-worn camera.

Allegation (E) Abuse of Authority: Police Officer Namel Holguin failed to activate his body-worn camera.

Allegation (F) Abuse of Authority: Police Officer Key Matiascastillo failed to activate his body-worn camera.

It is undisputed that PO Sory, PO Holguin, and PO Matiascastillo all arrived at § 87(2)(b) apartment and spoke with her through the door but did not activate their cameras. The officers only activated their cameras once they had left the location and returned to enter with their tools, and even then, only activating their cameras when § 87(2)(b) opened the door (BR 06, BR 13, BR 12).

PO Sory (BR 15), PO Holguin (BR 14), and PO Matiascastillo (BR 08), all stated that they did not record this first interaction because they did not believe they had to record initial conversations without entering. Further, all three officers agreed that they had arrived to the location to search for § 87(2)(b) who had escaped from a hospital approximately 5:00 a.m. that morning and as such, had received a department-wide alert in regard to him.

NYPD Patrol Guide Procedure 212-123 (BR 16) instructs officers to “active BWC prior to

engaging in any police action,” and defines police action as “any police service, as well as, law enforcement or investigative activity conducted in furtherance of official duties.”

As the officers were at the location to investigate an escaped prisoner, this fell under the Patrol Guide’s definition of police action. § 87(2)(g)

it is therefore recommended that **Allegations D-F** be closed as *substantiated*.

Allegation (G) Abuse of Authority: Police Officer Namel Holguin threatened to damage § 87(2)(b) property.

It is undisputed that the officers arrived at § 87(2)(b) apartment and spoke with her through the door. It is further undisputed that § 87(2)(b) refused to open the door for the officers and asked to see their warrant. Finally, it is undisputed that the officers told § 87(2)(b) that if she did not open the door, then officers would take the door down. § 87(2)(b) identified the subject officer who threatened to take her door down as the same officer that held a ballistic shield (**BR 17**). § 87(2)(b) also stated that at the end of the incident, officers showed her an arrest warrant.

PO Holguin was the officer with the ballistic shield according to his own statement and as seen in his own BWC footage (**BR 14, BR 13**) and as such, he was pled as the subject of this allegation.

PO Holguin (**BR 14**) stated that the officers were initially notified of a prisoner, § 87(2)(b) who escaped from police custody at a hospital. The notification was a department-wide memo and also further relayed to him in a call from Sergeant Murphy. § 87(2)(b) had escaped approximately two hours prior to the department-wide memo. PO Holguin reviewed the warrant profile for § 87(2)(b) which included an active felony arrest warrant (though PO Holguin could not remember the offense). The warrant profile listed § 87(2)(b) in Manhattan as a possible address associated with § 87(2)(b) and as such, PO Holguin believed he had the justification to search this location. PO Holguin, PO Sory, and PO Matiascastillo then immediately went to the § 87(2)(b) and took no other investigative steps prior to doing so. PO Holguin and the other officers did not speak with any neighbors or security guards or review any surveillance video to determine if § 87(2)(b) was inside of the apartment.

Upon arrival, PO Holguin (**BR 14**) and the other officers knocked on the door and spoke with § 87(2)(b) who refused to open the door to the officers without seeing a warrant. PO Holguin tried to show § 87(2)(b) the arrest warrant on his cellphone through the peephole but § 87(2)(b) said that she could not see it. PO Holguin believed that § 87(2)(b) was purposely stalling to give § 87(2)(b) time to hide. PO Holguin stated that the only thing that made him believe § 87(2)(b) was present in the apartment was due to § 87(2)(b) warrant profile having it listed as a location, and § 87(2)(b) refusal to open the door for the officers. PO Holguin acknowledged that all of these factors led to him threatening to take the door down if § 87(2)(b) did not open it.

PO Sory (**BR 15**) and PO Matiascastillo (**BR 08**) provided similar statements, citing that they did not conduct any further investigative work to establish if § 87(2)(b) was present.

As NYPD Legal was unable to provide the copy of § 87(2)(b) arrest warrant that was in effect at the time of the incident due to its subsequent cancellation in the system, the investigation was unable to obtain a copy of the arrest warrant (**BR 18**). However, the investigation credited the existence of the arrest warrant because § 87(2)(b) reads aloud from the arrest warrant and acknowledges that it has her address in PO Rodriguez’s BWC (**BR 05**) at the 04:59 timestamp (after the subsequent entry and search).

NY Penal Law 120.80 states that for an arrest warrant, officers “may, under circumstances and in the manner prescribed in this subdivision, enter any premises in which he reasonably

believes the defendant to be present” (BR 20).

In *Payton v. New York*, 445 U.S. 573 (BR 19) the court found that “an arrest warrant founded on probable cause implicitly carries with it the limited authority to enter a dwelling in which the suspect lives when there is reason to believe the suspect is within.”

§ 87(2)(g)

It is therefore recommended that Allegation G be closed as *substantiated*.

Allegation (H) Abuse of Authority: Sergeant Brendan Murphy entered § 87(2)(b) in Manhattan.

Allegation (I) Abuse of Authority: Sergeant Brendan Murphy searched § 87(2)(b) in Manhattan.

It is undisputed that PO Holguin, PO Sory, PO Matiascastillo, PO Rodriguez and PO Aiello entered § 87(2)(b) apartment and searched it for § 87(2)(b).

PO Sory (BR 15) stated that he called his supervisor, Sgt. Murphy, to explain that § 87(2)(b) was not initially letting the officers inside of the apartment to affect the arrest warrant. Sgt. Murphy then told the officers get their equipment and go inside of the apartment to affect the warrant. PO Sory interpreted this to mean that they should enter the location and take the door. This conversation occurred prior to the BWC activation.

Sgt. Murphy (BR 22) stated that he knew there was an escaped prisoner from the hospital and that there was an arrest warrant for the individual. Sgt. Murphy knew nothing else related to the arrest warrant. PO Sory told Sgt. Murphy that there was a woman inside of the apartment who was not letting the officers inside, but she was not the escaped prisoner. PO Sory did not communicate any investigative steps that the officers took to determine if the escaped prisoner was inside of the apartment. Sgt. Murphy stated that there were no steps that needed to be taken to determine if the escaped prisoner was inside of the apartment, and that an arrest warrant alone was sufficient. Sgt. Murphy instructed the officers to go inside and execute the warrant.

NY Penal Law 120.80 states that for an arrest warrant, officers “may, under circumstances and in the manner prescribed in this subdivision, enter any premises in which he reasonably believes the defendant to be present,” (BR 20).

In *Payton v. New York*, 445 U.S. 573 (BR 19) the court found that “an arrest warrant founded on probable cause implicitly carries with it the limited authority to enter a dwelling in which the suspect lives when there is reason to believe the suspect is within.”

§ 87(2)(g)

It is therefore recommended that Allegations H and I be closed as *substantiated*.

Allegation (J) Force: Police Officer Namel Holguin used physical force against § 87(2)(b).

It is undisputed that when § 87(2)(b) ultimately opened the door for the officers, PO Holguin was the first one inside of the apartment. § 87(2)(b) did not want the officers to go further inside, so she stood in the hallway. PO Holguin, holding a ballistic shield, then

used his shield to push § 87(2)(b) into the wall, so that he and the other officers could enter.

BWC from PO Matiascastillo (**BR 12**) shows the entry and push at 00:59. § 87(2)(b) opens the door and asked for the warrant. PO Holguin steps inside of her apartment with the shield. PO Holguin walks past § 87(2)(b) and pushes the ballistic shield into § 87(2)(b) back. The entire action is completed by 01:09. PO Holguin never twists § 87(2)(b) arm, nor does he make a pushing or slamming motion.

NYPD Patrol Guide Procedure 221-01 states that officers must use “only the reasonable force necessary to gain control or custody of a subject” (**BR 23**). It further adds that, “In determining whether the use of force is reasonable, members of the service should consider the following: (a) nature and severity of the crime/circumstances; (b) actions taken by the subject; (c) duration of the action; (d) immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders; (e) whether the subject is actively resisting custody; (f) whether the subject is attempting to evade arrest by flight; (g) number of subjects in comparison to the number of MOS; (h) size, age, and condition of the subject in comparison to the MOS; (i) subject’s violent history; (j) presence of hostile crowd; (k) subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

Upon review of the BWC footage, PO Holguin walked past § 87(2)(b) and used the ballistic shield to make the space. § 87(2)(g)

Allegation (K) Abuse of Authority: Police Officer Namel Holguin threatened to arrest § 87(2)(b)

BWC from PO Matiascastillo (**BR 12**) shows that at the time of the entry and push at 00:59, PO Holguin tells § 87(2)(b) to get on the floor and § 87(2)(b) requests the arrest warrant. PO Holguin steps inside of her apartment with the ballistic shield and

says at 01:04, “Lock her up. Lock her up. Lock her up.” No officer places § 87(2)(b) in handcuffs nor arrests her.

PO Holguin (BR 14) did not recall making the statement, “Lock her up” even after reviewing the BWC footage. PO Holguin noted that § 87(2)(b) could have been arrested for OGA for refusing to open the door for the officers. PO Holguin also added that § 87(2)(b) could have been arrested for hiding a prisoner if § 87(2)(b) had been at the location.

NY Penal Law 195.05 (BR 24) states that a “person is guilty of obstructing governmental administration when he intentionally obstructs, impairs or perverts the administration of law or other governmental function or prevents or attempts to prevent a public servant from performing an official function, by means of intimidation, physical force or interference.”

As shown on the BWC footage, § 87(2)(b) opened the door to the apartment, and when the officers tried to enter, she did not show further intent to stop them and was solely requesting the arrest warrant. § 87(2)(g)

It is therefore recommended that Allegation K be closed as *substantiated*.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 03).
- PO Matiascastillo has been a member of service for five years and has been a subject in one other CCRB complaint and three allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Murphy has been a member of service for 11 years and has been a subject in 11 other CCRB complaints and 25 allegations of which, one was substantiated.
 - 201902127 involved a substantiated allegation of a failure to provide an RTKA card against Sgt. Murphy. The Board recommended Instructions, and the NYPD imposed Instructions.
 - § 87(2)(g)

- PO Holguin has been a member of service for eight years and has been a subject in two other CCRB complaints and 13 allegations, one of which was substantiated.
 - 201701610 involved a substantiated allegation of Premises Entered and Searched against PO Holguin. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - § 87(2)(g)
- PO Sory has been a member of service for eight years and has been a subject in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of November 25, 2024 the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 14

Investigator:	<u>Michael Miskovski</u>	<u>SI Michael Miskovski</u>	<u>02/13/2025</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Cassandra Fenkel</u>	<u>IM Cassandra Fenkel</u>	<u>02/18/2025</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date